



**AT THE HELM** Ravneet Kaur took charge as the new Chairperson of the CCI on May 23

## GATHERING STEAM

# 12

### TRANSACTIONS

► Approved by the CCI since May 26 this year

# 1,224

### CASES

► Received till date relating to anti-competitive agreements and abuse of dominance

# 1,020

### NOTICES

► Disposed so far relating to mergers and acquisitions. It has approved 953 cases, and proposed remedies in 26 cases

# 67

### VACANCIES

► The CCI has a total sanctioned strength of 195

The main concern for industry was the delay in clearing merger and acquisition proposals after former CCI chairperson Ashok Kumar Gupta demitted office in October 2022. It estimated that more than 16 deals worth more than ₹10,000 crore were pending approval. Subsequently, the anti-trust regulator was given the go-ahead by the government to clear these deals through a special dispensation under the doctrine of necessity, despite a lack of quorum.

Since taking charge, Kaur has demonstrated that she means business. The CCI has cleared a dozen mergers and acquisitions since May 26, after she took over.

The CCI, along with the Ministry of Corporate Affairs, is also working to notify the provisions of the Competition (Amendment) Act, 2023, and has a plethora of other issues, including regulating digital markets and taking up cases of anti-profiteering under GST.

Kaur says that several provisions of the amendment have been enforced through notifications in May and July. "However, certain provisions are yet to be implemented, pending the establishment of rules, regulations, and procedures after stakeholder consultations. CCI is diligently working on formulating the necessary regulations to complete the implementation process," she says.

The amendments, which were enacted in April, aim at a comprehensive overhaul of the competition laws. Several provisions of the Act, such as the higher penalty of ₹5 crore for false statements and provisions relating to hub-and-spoke cartels were notified in May. However, other provisions, like those on deal value thresholds and a green channel for automatic approval, are still pending. The CCI has recently issued draft regulations for commitment and settlement and has invited stakeholder comments.

Discussions are also underway on the proposed Digital Competition Bill. "The government has established a committee on digital competition law to address this matter. The Committee is actively working on the issue, and we can expect to see developments in due course," says Kaur, when asked about the proposed bill and its highlights.

With growing complexities and challenges surrounding the digital economy and the rise of Big Tech and subsequent competition-related issues, the regulator has been working on ways to address these and is in the process of setting up a specialised unit. "The commission has granted in-principle approval for the setting up of a Digital Markets and Data Unit in CCI that will act as a specialised interdisciplinary centre of expertise for digital markets," says Kaur.

In two landmark cases last year, the CCI imposed penalties of ₹1,337.76 crore and ₹936.44 crore against tech giant Google for anti-competitive behaviour, apart from issuing a cease-and-desist order and remedies.

The commission has also taken cognisance of alleged anti-competitive practices indulged in by other tech behemoths such as Apple, Flipkart and Amazon, Meta-WhatsApp, Zomato and Swiggy, MakeMyTrip, OYO, and BookMyShow and ordered investigations.

Kaur says the CCI has started hearing cases relating to anti-profiteering under the GST as well. "The commission has considered a large number of pending reports of the Director General, Anti-Profiteering, and taken suitable action. Prior to that, the methodology and procedure for consideration of anti-profiteering matters were updated," she says.

From December 1, 2022, the CCI was mandated to look into anti-profiteering issues related to GST after the winding up of the National